

		opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all.”].) Defendant Flowers shall give notice of these rulings.
2	Phan vs. Fountain Valley Regional Hospital and Medical Center 30-2025-01500005	There is no full written tentative ruling at this time. The court provides the following summary tentative ruling: <u>Motion to Furnish Security</u> Defendants Francoise Raiola, M.D.’s and Romana Bailey, M.D.’s Motion for Order Requiring Vexatious Litigant Plaintiff, Tin Quoc Phan, to Furnish Security in the Amount of \$12,863.79 within 60 Days of Court Order is GRANTED. Defendants Francoise Raiola, M.D.’s and Romana Bailey, M.D.’s Request for Judicial Notice at Hearing on Motion for Order Requiring Vexatious Litigant Plaintiff, Tin Quoc Phan, to Furnish Security in the Amount of \$12,863.79 within 60 Days of Court Order is GRANTED as to Exhibits A-H. (See Evid. Code, § 452, subd. (d).) Plaintiff Tin Quoc Phan is ORDERED to post an undertaking or bond, or furnish security, in the amount of \$12,863.79 within 60 days of receiving notice of this ruling. Plaintiff Tin Quoc Phan is ORDERED to file and serve a notice of undertaking, bond, or furnishing of security and attach evidence of the undertaking, bond, or furnishing of security within 60 days of receiving notice of this ruling. If Plaintiff Tin Quoc Phan fails to abide by the court’s orders, Defendants Francoise Raiola, M.D. and Romana Bailey, M.D. may move <i>ex parte</i> for dismissal pursuant to Civil Procedure Code section 391.4. <u>Furnishing Security</u> Code of Civil Procedure section 391.1 states that: In any litigation pending in any court of this state, at any time until final judgment is entered, a defendant may move the

		court, upon notice and hearing, for an order requiring the plaintiff to furnish security or for an order dismissing the litigation pursuant to subdivision (b) of Section 391.3. The motion for an order requiring the plaintiff to furnish security shall be based upon the ground, and supported by a showing, that the plaintiff is a vexatious litigant and that there is not a reasonable probability that they will prevail in the litigation against the moving defendant. (Code Civ. Proc. § 391.1, subd. (a).) Code of Civil Procedure section 391.3 further provides that: (a) Except as provided in subdivision (b), if, after hearing the evidence upon the motion, the court determines that the plaintiff is a vexatious litigant and that there is no reasonable probability that the plaintiff will prevail in the litigation against the moving defendant, the court shall order the plaintiff to furnish, for the benefit of the moving defendant, security in such amount and within such time as the court shall fix. (b) If, after hearing evidence on the motion, the court determines that the litigation has no merit and has been filed for the purposes of harassment or delay, the court shall order the litigation dismissed. This subdivision shall only apply to litigation filed in a court of this state by a vexatious litigant subject to a prefiling order pursuant to Section 391.7 who was represented by counsel at the time the litigation was filed and who became in propria persona after the withdrawal of his or her attorney. (c) A defendant may make a motion for relief in the alternative under either subdivision (a) or (b) and shall combine all grounds for relief in one motion. (Code Civ. Proc., § 391.3.)
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		In addition, “[w]hen security that has been ordered furnished is not furnished as ordered, the litigation shall be dismissed as to the defendant for whose benefit it was ordered furnished.” (Code Civ. Proc., § 391.4.) Here, Plaintiff was declared a vexatious litigant on October 22, 2025, in the related case, <i>Phan Tin Quoc v. Fountain Valley Regional Hospital</i>, Orange County Superior Court Case Number 30-2023-01337174. Plaintiff was also declared a vexatious litigant on October 27, 2025, in <i>Tin Quoc Phan v. County of Orange</i>, Orange County Superior Court Case Number 30-2025-01496640. Further, there is no reasonable probability that Plaintiff will prevail in this action. Plaintiff’s claims are barred by the one-year statute of limitations under Code of Civil Procedure section 340.5. In addition, Plaintiff cannot establish that Defendants Francoise Raiola, M.D. and Romana Bailey, M.D. owed him a duty of care or engaged in wrongful conduct causing him the injury alleged in the Complaint. Therefore, the court will grant the motion to furnish security.
3	Ydens Holdings, LLC vs. Mobix Labs, Inc. 30-2026-01555400	There is no full written tentative ruling at this time. The court provides the following summary tentative ruling: <u>Applications for Right to Attach Order and Temporary Protective Order</u> Plaintiffs Ydens Holdings LLC’s, Robert Ydens’, and Julie Ydens’ Application for Right to Attach Order, Temporary Protective Order, and Order for Issuance of Writ of Attachment as to Defendant EMI Solutions, LLC is DENIED. Plaintiffs Ydens Holdings LLC’s, Robert Ydens’, and Julie Ydens’ Application for Right to Attach Order, Temporary Protective Order, and Order for